

26NNCP00437 26NNCP00437

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-09-04

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BUR%2CB%2C09%2F04%2F2026

Source SHA-256: 1d4fb5c46a971a985fd4cfdc594e72dfdd7a429deeb59d9e5cd211bf1bb61d6f

Case Number: 26NNCP00437 Hearing Date: September 4, 2026 Dept: B

Hon. Victor Avila, Dept B

Motion to Compel Further Response to Deposition;

Request for Sanctions

Hearing Date: 9/4/26

CASE NO.: 26NNCP00437

CASE NAME: Mobilias Insurance Company of
Arizona v. Mahmood Arzanpour

Moving Party: Plaintiff Mobilias Insurance
Company of Arizona

Responding Party: Non-Party Arash Yaghoobian
and Defendant Mahmood Arzanpour

Notice: Sufficient

Ruling: GRANT in part, DENY in part.

NOTICE

The Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day

before the hearing of the party's intention to argue as to this matter/motion. The tentative ruling will

become the ruling of the court if no argument is received. Notice may be given either by email at BurDeptB@LACourt.org or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

BACKGROUND

This is a personal injury action arising from a motor vehicle accident that occurred on December 14, 2022, with an uninsured driver. Defendant Mahmood Arzanipour (Defendant) settled the matter with the other motorists, and on March 18, 2024, sent a demand letter demanding arbitration to his own insurance company, plaintiff Mobilias Insurance Company of Arizona (Plaintiff).

On July 13, 2026, Plaintiff filed a petition for an Uninsured Motorist Action.

On June 3, 2026, Plaintiff sent an amended notice of deposition of Person Most Qualified (PMQ) to Defendant along with a deposition subpoena and letter to Dr. Yaghoobian, concerning billing for Defendant's purported medical costs.

On June 12, 2026, the deposition of Dr Yaghoobian took place.

On July 22, 2026, Plaintiff filed the instant motion to compel further deposition of Defendant's PMQ. On August 26, 2026, Non-Party Dr. Yaghoobian filed an opposition and Defendant separately filed joinder of that opposition. On August 27, 2026, Plaintiff filed a reply.

LEGAL

STANDARD

Under Code of Civil Procedure section 2025.480, if a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order

compelling that answer or production. (Code Civ. Proc., § 2025.480(a).) A motion to compel further responses to a deposition subpoena for production of business records must be made within 60 days after the completion of the record of the deposition and be accompanied by a meet and confer declaration. (Code Civ. Proc., § 2025.480(b).) If the court determines that the answer or production sought is subject to discovery, it shall order that the answer be given or the production be made on the resumption of the deposition. (Code Civ. Proc., § 2025.480(i).)

DISCUSSION

Timeliness

Here, the deposition of Dr. Yaghoobian took place on June 12, 2026. (Mot., Radusic Decl., ¶ 7.) The instant motion was filed by Plaintiff on July 22, 2026, 40 days after the deposition. Thus, the motion is timely and conforms with the 60-day statutory deadline.

Separate Statement

California Rules of Court, rule 3.1345 requires a separate statement for motions to compel further responses. Plaintiff filed a separate statement in compliance with rule 3.1345(a) for the noticed motion. Accordingly, this requirement is satisfied

Meet and Confer

A motion to compel further responses must be accompanied by a meet and confer declaration “showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040, subd. (a); § 2030.300, subd. (b)(2).)

Here, Plaintiff declares that they have attempted to engage in meet and confer efforts by sending a meet and confer letter to Dr. Yaghoobian on June 24, 2026. (Radusic Decl., ¶ 21.) However, Plaintiff declares that Dr. Yaghoobian has not

responded, necessitating this motion. (Radusic Decl., ¶ 22.) Responding party Dr. Yaghoobian, does not acknowledge having engaged in meet and confer efforts.

One attempt at meeting and conferring is not compliant with good faith efforts. The parties are admonished to comply with meet and confer requirements in the future; however, the Court will address the motions on its merits.

Compel Further Deposition

Plaintiff

moves the Court to compel request for further deposition and production of documents of Arash Yaghoobian, M.D. person most qualified. (Mot., pp. 2-3.) Plaintiff argues that Dr. Yaghoobian stated that he was the PMQ for the topics listed in the amended deposition notice and then refused to answer them. (Mot., p. 9.) Plaintiff argues that Dr. Yaghoobian coded his bills, created the bills, and provided them to the parties however, later claimed he did not know requested information including the factors taken into consideration when deciding to issue a lien, average amount he recovers in other Personal Injury lien cases and other cases, if he had sent patients to collections in the past, and if he was paid for procedures at issue. (Ibid.) Plaintiff argues that the information sought is relevant and of reasonable value because they seek information related to Defendant's medical billing. (Mot., p. 10.)

In

opposition, Dr. Yaghoobian and Defendant (collectively, Respondents) argue that the topics and documents requests are overbroad, burdensome, and seek proprietary business practices and nonparty information beyond what is needed for this matter. (Opp., p. 3.) Respondents argue that Plaintiff seeks five years of cross-payer reimbursement data, fee schedules, lien factoring arrangements, collection histories, and communications. (Ibid.) Further, Respondents argue that Plaintiff seeks generalized business analytics that a treating physician PMQ is not required to provide. (Opp., p. 6.)

In

reply, Plaintiff argues that the requests are not overburdensome, and if Dr Yaghoobian truly was not the PMQ regarding the questions asked, he should not have purported to be. (Reply, pp. 3-5.)

Here, Topics 1-6

inquire about general billing practices typical of Dr. Yaghoobian's practice as they relate to lawsuits. (Sep. Statement, pp. 1-16.) Further, Questions 1-19 seek general billing information and practices of Dr. Yaghoobian's practice. (Sep. Statement, pp. 16-60.) In response to Plaintiff's separate statement detailing why further response is sought as to specific topics of deposition, Respondent Dr. Yaghoobian argues that "witnesses respond to questions, not topics". (See Response to Separate Statement.) Further, Dr. Yaghoobian answered nearly every question (Questions 1-19) with "I don't know" in a seemingly combative manner despite declaring himself the person most knowledgeable on all billing practices at his office. (Yaghoobian Decl., ¶ 9.) The court does not find these topics or categories overbroad and find them relevant to the action.

Plaintiff also

requests Production of Documents (RPDs) pursuant to the deposition. RPDs 1-4, 7-9, and 17-20 seek documents relied upon for the deposition, general fee schedules, and the instant action. RPDs 5-6 seek communications with Defendant's attorney's regarding the action. RPDs 10-15, and 21-23 seek all records and billing documents for patients of the same or similar circumstances of Defendant and general lien patient documents for the past 5 years. RPD 24 asks Dr. Yaghoobian to specify where the documents requested in the RPDs above might be if not in his possession. The Court finds documents requested in RPDs, and 17-20 relevant to the instant action and not overbroad as they are tailored to the Defendant's action. However, the Court finds that RPDs 5-6 request privileged information from communication with Defense counsel and finds that RPDs 10-15 and 21-23 are overbroad in scope as they seek information about other patients and their billing and all documents relating to lien patients for the last 5 years.

Accordingly, the

motion to compel further response to deposition as to topics 1-6, questions 1-19, and RPDs 1-4, 7-9, and 17-20 is GRANTED. However, the motion to compel further response to deposition as it relates to RPDs 5-6, 10-16, and 21-23 is DENIED.

Sanctions

The court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of

the sanction unjust. (Code Civ. Proc., § 2025.480(j).)

“A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought.” (Code Civ. Proc., § 2023.040.)

Plaintiff request

imposition of sanctions in the amount of \$1,740 against non-party Dr. Yaghoobian for conduct necessitating this motion consisting of \$1,260 in attorney's fees reflecting 6.0 hours preparing the moving papers, separate statement, and supporting declaration and exhibits, 2.0 hours evaluating opposing papers, and 1 hour appearing at the hearing for a total of 9.0 hours at a rate of \$210 per hour, plus a \$60 filing fee. (Radusic Decl., ¶ 23.)

Although Dr. Yaghoobian argues that sanctions are not warranted, his conduct necessitated the motion, under which sanctions are enforced. Further, Dr. Yaghoobian provides no caselaw to support his position against monetary sanctions and Plaintiff succeeded in great part on the merits of the motion, entitling them to reward of sanctions. (Code Civ. Proc., § 2025.480(j).)

Here, the Court will exercise its discretion and reduce sanctions to \$690, reflecting 3.0 hours at a rate of \$210 per hour plus a \$60 filing fee.

Accordingly, sanctions are GRANTED against

CONCLUSION

AND ORDER

Plaintiff

Mobilias Insurance Company of Arizona's motion to compel further response to deposition as to topics 1-6, questions 1-19, and RPDs 1-4, 7-9, and 17-20 is GRANTED.

Plaintiff's

motion to compel further response to deposition as it relates to RPDs 5-6, 10-16, and 21-23 is DENIED.

Plaintiff's request for sanctions is granted

in the amount of \$690 to be paid by Responding Party Dr. Yaghoobian within 15 days from this ruling.

MOVING PARTY shall submit a proposed

order consistent with this ruling within 10 days from the date of this hearing and provide notice.